

25STCV26972 25STCV26972

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Case Number: 25STCV26972 Hearing Date: September 17, 2026 Dept: 414

25STCV26972

Aaron Celious v. Ana Gabriela Lopez, et al.

Thursday,

September 17, 2026

[TENTATIVE] ORDER DENYING

MOTION FOR RECONSIDERATION OF JUNE 2, 2026 ORDER GRANTING JUDGMENT ON THE PLEADINGS AS TO THE THIRD AND

FOURTH CAUSES OF ACTION; ALTERNATIVE REQUEST FOR SUA SPONTE RECONSIDERATION
(0933)

I.

BACKGROUND

The complaint alleges

Defendants, Plaintiff's neighbors, deprived Plaintiff from using public roads and sidewalks, engaged in overly loud nuisance activities, improperly operated a mobile car wash, defamed Plaintiff and generally harassed Plaintiff.

Plaintiff's complaint asserts causes of action for public nuisance, private nuisance, defamation, false light, intentional infliction of emotional distress, civil harassment and negligence.

On June 2, 2026, the

Court considered Defendant, Ana Gabriela Lopez's ("Lopez"), motion to dismiss claims alleged against her. Construing the motion as one for judgment on the pleadings, the Court granted the motion and dismissed the third and fourth causes of action for defamation and false light, respectively, on grounds the

claims were barred by the statute of limitations.

Plaintiff, Aaron

Celious, moves for reconsideration of the Court's ruling. Plaintiff contends the Court did not address three provisions of California law that independently bear on whether the complaint was timely filed: Code of Civil Procedure section 356 (statutory tolling while commencement is barred by statutory prohibition), section 12a (extension of a deadline that falls on a weekend or holiday), and section 1010.6, subdivision (e)(4)(E) (statutory tolling for electronically filed complaints rejected on technical grounds).

Plaintiff also alleges

that the two factual premises on which the Court relied are refuted by the record with respect to Plaintiff's 26-day delay in filing the complaint once granted leave by the presiding judge. Plaintiff argues he did not have any means of becoming aware of the ruling which was served by mail during a time that Plaintiff was traveling abroad.

Plaintiff argues that

these issues were not raised earlier because Plaintiff opposed the arguments actually made. The order introduced a materially difference circumstances by rejecting tolling because "Plaintiff was not pursuing an alternative remedy or forum." (Mot. 6:22-25.)

Plaintiff served the

motion on Defendants including Ana Gabriela Lopez, who made the motion to dismiss. No opposition has been filed.

II.

LEGAL STANDARDS

A motion for reconsideration may be

brought by any party affected by the court's order within 10 days after service of written notice of entry of the order if new or different facts, circumstances, or law warrant reconsideration and modification, amendment, or revocation of the prior order. (Code

Civ. Proc., § 1008 subd. (a).) The clerk was directed to give notice of the Court's ruling, however, the Court's file does not reflect that notice was given. Regardless, Plaintiff's motion is timely made, six days after the Court's June 2, 2026, ruling.

The court also has discretion to reconsider an order on its own motion, pursuant to its inherent authority. Section 1008 "limit[s] the parties' ability to file repetitive motions but do not limit the court's ability, on its own motion, to reconsider its prior interim orders so it may correct its own errors." (Le Francois v. Goel (2005) 29 Cal.Rptr.3d 249.)

Regardless of whether the motion is statutorily made or is based on the Court's inherent authority, Plaintiff is required to show new or different facts, circumstances, or law that would warrant reconsideration. Plaintiff is required to offer some fact or circumstance not previously considered and a valid reason for not offering it earlier. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.)

III. DISCUSSION

On June 2, 2026, the Court granted Lopez's motion to dismiss on statute of limitations grounds. As noted in the Court's ruling, Lopez's motion was granted because the applicable statute of limitations barred the claims, and Plaintiff did not demonstrate that equitable tolling applied. (M.O. 6/2/26.) Plaintiff was required to show three elements: (1) timely notice of the claim to Defendant during the statutory period, (2) lack of prejudice to a defendant in gathering and preserving evidence; and (3) Plaintiff's reasonableness and good faith. (Saint Francis Memorial Hosp. v. State Dept. of Pub. Health (2020) 9 Cal.5th 710, 724.) Addison v. State of California (1978) 21 Cal.3d 313, 319 on which Plaintiff relied in opposing the motion to dismiss concurs that the same three elements are required to establish equitable tolling.

Plaintiff's motion challenges facts on which the Court relied. (Mot. 3:14-18.)

This is not a new, fact, circumstance, or law that could support a motion for reconsideration. Plaintiff argues that Court's factual findings or interpretation of those facts were unsupported by the record. In Gilberd where the plaintiff argued that the Court misinterpreted the law, the Gilberd Court determined that the argument was "utterly specious" as a disagreement with the Court's ruling is not a proper basis for the motion. (Gilberd at 1500 ["Since in almost all instances, the losing party will believe

that the trial court's 'different' interpretation of the law or facts was erroneous, to interpret the statute as the respondent urges would be contrary to the clear legislative intent to restrict motions to reconsider to circumstances where a party offers the court some fact or authority that was not previously considered by it."].)

Plaintiff then cites three statutory provisions that he argues would independently bear on whether the claims were barred on limitations grounds. Plaintiff faults the Court for not addressing these statutes. (Opp. 3:5-10.) It was incumbent on Plaintiff, however, to provide a basis to avoid the limitations bar. It is not the Court's role to advocate for Plaintiff and determine every possible defense that would avoid the limitations bar. Additionally, the legal authority cited by Plaintiff are not new, or different facts, circumstance, or law to support reconsideration, nor has Plaintiff shown why he did not make these arguments earlier.

IV.

CONCLUSION

Accordingly, Plaintiff's motion for reconsideration is DENIED.